

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

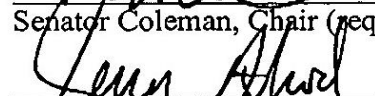
I move to amend Senate Bill No. 1946, by substituting the attached floor substitute (Request #3677) for the title, enacting clause and entire body of the measure.

Submitted by:

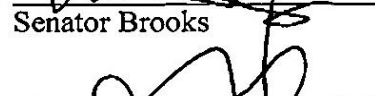

Senator Murdock

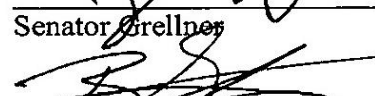
I hereby grant permission for the floor substitute to be adopted.

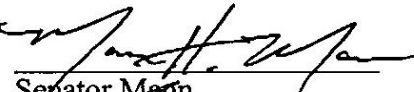

Senator Coleman, Chair (required)


Senator Alford

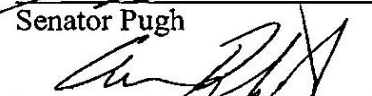

Senator Brooks

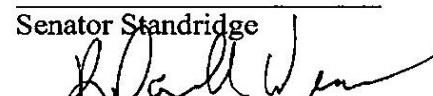

Senator Grellner

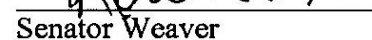

Senator Guthrie


Senator Mann


Senator Pugh


Senator Reinhardt


Senator Standridge


Senator Weaver

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor
Leader

Note: Business and Insurance committee majority requires six (6) members' signatures.

Murdock-CAD-FS-SB1946
2/18/2026 10:49 AM

(Floor Amendments Only)

Date and Time Filed: 2-25-26 11:10am *fd*

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 1946

By: Murdock

FLOOR SUBSTITUTE

[alcoholic beverages - distiller license -
limitation - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-103, as
amended by Section 5, Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2025,
Section 2-103), is amended to read as follows:

Section 2-103. A. A distiller license shall authorize the
holder thereof:

1. To manufacture, bottle, package and store spirits on
licensed premises;

2. To sell spirits in this state to licensed wholesalers and
manufacturers only;

3. To sell spirits out of this state to qualified persons; to
purchase from licensed distillers and rectifiers in this state, and

1 import spirits from without this state for manufacturing purposes in
2 accordance with federal laws and regulations;

3 4. To serve free samples of spirits produced only by the
4 licensee to visitors twenty-one (21) years of age and older. For
5 purposes of this section, no visitor may sample more than a total of
6 three (3) fluid ounces of spirits per day. The distiller shall
7 restrict the distribution and consumption of spirits samples to an
8 area within the licensed premises designated by the distiller. A
9 current floor plan that includes the designated sampling area shall
10 be on file with the ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE)
11 Commission. No visitor under twenty-one (21) years of age shall be
12 permitted to enter the designated sampling area when samples are
13 being distributed and consumed. Samples of spirits served by a
14 distiller under this section shall not be considered a sale of
15 spirits within the meaning of Article XXVIII-A of the Oklahoma
16 Constitution or Section 1-103 of this title; provided, such samples
17 of spirits shall be considered removed or withdrawn from the
18 distillery for use or consumption within the meaning of Section 5-
19 110 of this title for excise tax determination and reporting
20 requirements;

21 5. To sell spirits produced by the licensee for either on-
22 premises or off-premises consumption to consumers on the licensed
23 distillery premises or in an area controlled by the licensee located
24 contiguous to the licensed distillery premises and at ~~one (1)~~

1 ~~location~~ two locations controlled by the licensee located in the
2 same ~~county~~ state as the licensed distillery premises but not
3 contiguous to the licensed distillery premises. Spirits offered for
4 sale by the Oklahoma licensed distiller will have been sold to and
5 shipped to an Oklahoma licensed wine and spirits wholesaler and then
6 made available for purchase by the Oklahoma licensed distiller for
7 sale; and

8 6. To sell spirits and sample spirits at public events such as
9 trade shows or festivals. Products offered for sale by the Oklahoma
10 licensed distiller will have been sold to and shipped to an Oklahoma
11 licensed wine and spirits wholesaler and then made available for
12 purchase by the Oklahoma licensed distiller. Spirits offered for
13 on-premises consumption shall be in an area controlled by the
14 distillery and such area shall be considered the distillery
15 premises.

16 B. Spirits sold pursuant to paragraphs 5 and 6 of subsection A
17 of this section shall not exceed fifteen thousand (15,000) gallons
18 per calendar year in combination.

19 C. Spirits sold pursuant to paragraphs 5 and 6 of subsection A
20 of this section shall be a final sale. Licensed distillers may
21 offer for sale ~~non-alcoholic~~ nonalcoholic substances which may be
22 added to spirits by the consumer after final sale. Substances used
23 for on-premises consumption shall be ~~non-alcoholic~~ nonalcoholic in
24

1 nature and shall not be considered part of the manufacturing
2 process.

3 SECTION 2. This act shall become effective November 1, 2026.

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5 60-2-3677 CAD 2/25/2026 11:24:23 AM

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